

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1489

By: Pugh of the Senate

and

6 Caldwell (Chad) of the
7 House

8
9
10 An Act relating to schools; amending 70 O.S. 2021,
11 Section 6-189, as amended by Section 1, Chapter 92,
12 O.S.L. 2024 (70 O.S. Supp. 2025, Section 6-189),
13 which relates to certification requirements for
14 superintendent and principal; adding requirement for
15 principal certification to include certain
16 professional education; amending 70 O.S. 2021,
17 Section 13-101, which relates to services for
18 children with disabilities; directing the State
19 Department of Education and public school districts
20 to comply with certain act; authorizing the
21 Department to expend certain funds; modifying
22 definition; providing certain rights to parents and
23 legal guardians of children with disabilities;
24 directing the Department to publish certain
 information on its website; allowing the State Board
 of Education to promulgate rules and update certain
 policies and procedures; updating statutory
 references; updating statutory language; providing an
 effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. AMENDATORY 70 O.S. 2021, Section 6-189, as
2 amended by Section 1, Chapter 92, O.S.L. 2024 (70 O.S. Supp. 2025,
3 Section 6-189), is amended to read as follows:

4 Section 6-189. A. The certification system required by the
5 Oklahoma Teacher Preparation Act as part of the new teacher
6 preparation system shall be competency-based. The competencies for
7 certification shall be integrated with competencies specified in
8 Section 6-185 of this title. By July 1, 1996, the State Board of
9 Education shall adopt general competencies for certification, and by
10 January 1, 1997, the Board shall have adopted full competencies and
11 implemented the certification system as required in ~~this act~~ the
12 Oklahoma Teacher Preparation Act. No higher education courses or
13 credit hours may be specified by the State Board of Education in
14 rules for certification. Nothing in the certification rules adopted
15 by the Board shall prohibit the Oklahoma State Regents for Higher
16 Education from adopting policies and procedures it deems appropriate
17 for coursework, grade point average, or credit hours for teacher
18 preparation at institutions in The Oklahoma State System of Higher
19 Education.

20 B. The certification requirements for a school principal not
21 alternatively certified under subsection D of this section shall
22 include not less than:

- 23 1. Completion of a standard master's degree;
- 24

1 2. Completion of a program in education administration approved
2 by the ~~Oklahoma~~ Commission for ~~Teacher Preparation~~ Educational
3 Quality and Accountability with an emphasis on curriculum,
4 instruction, and building-level leadership skills. The requirement
5 in this paragraph shall not apply to any person who has completed a
6 master's degree program in education that included competencies that
7 are substantially equal to those listed in this paragraph and if the
8 degree was completed prior to July 1, 2005;

9 3. a. Any other professional education and requirements as
10 may be fixed by the State Board of Education.

11 b. The requirements of this paragraph shall include
12 professional education specific to the Individuals
13 with Disabilities Education Act (IDEA) and applicable
14 state laws related to the provision of special
15 education services which shall include at a minimum:
16 (1) federal and state laws and regulations related to
17 the provision of special education services,
18 (2) procedural safeguards and parental rights,
19 (3) child find obligations and evaluation
20 requirements,
21 (4) development, implementation, and monitoring of
22 individualized education programs (IEPs),
23 (5) discipline of students with disabilities, and
24

1 (6) due process hearings, complaint procedures, and
2 compliance obligations of public school districts
3 and administrators.

4 c. The State Board of Education shall promulgate rules
5 providing for approval of professional education
6 providers and courses, documentation and reporting
7 requirements, and procedures for verifying completion
8 of the required professional education.

9 d. Professional education completed pursuant to this
10 paragraph may be used to satisfy professional
11 development or continuing education requirements for
12 certification renewal;

13 4. A passing score on the subject area competency examination
14 required in Section 6-187 of this title; and

15 5. A minimum of two (2) years of successful teaching experience
16 in public or private schools accredited by the State Board of
17 Education or by the proper accrediting authority of another state of
18 the United States.

19 C. The certification requirements for a superintendent of
20 schools not alternatively certified under subsection D of this
21 section shall include not less than:

22 1. Certification as a school principal or completion of the
23 certification requirements for a school principal as set forth in
24 subsection B of this section;

1 2. Completion of a program in education administration approved
2 by the ~~Oklahoma~~ Commission for ~~Teacher Preparation~~ Educational
3 Quality and Accountability with an emphasis on district-level
4 leadership skills, and which shall include the following
5 competencies:

- 6 a. instructional leadership,
- 7 b. organizational leadership, including education
8 finance, education law, and risk management,
- 9 c. collaborative and community leadership, and
- 10 d. ethical leadership.

11 The requirement in this paragraph shall not apply to any person
12 who has completed ~~an Oklahoma~~ a Commission for ~~Teacher Preparation~~
13 Educational Quality and Accountability approved ~~Master's Degree in~~
14 ~~Education Administration~~ master's degree in education administration
15 or has completed a program in education that included competencies
16 that are substantially equal to those listed in this paragraph, and
17 if the degree or program was completed between the effective date of
18 this act and July 1, 2005;

19 3. Any other professional education and requirements as may be
20 fixed by the State Board of Education;

21 4. A passing score on the subject area competency examination
22 required in Section 6-187 of this title; and

23 5. A minimum of two (2) years of administrative experience in
24 public or private schools accredited by the State Board of Education

1 or by the proper accrediting authority of another state of the
2 United States.

3 D. 1. The standards for alternative certification for
4 superintendents of schools and principals shall include:

- 5 a. the completion of a standard master's degree,
- 6 b. two (2) years of relevant work experience in a
7 supervisory or administrative capacity,
- 8 c. a passing score on the subject area competency
9 examination required in Section 6-187 of this title,
10 and
- 11 d. filing with the director of teacher education at an
12 Oklahoma accredited institution of higher education a
13 plan for completing an alternative administrative
14 preparation program within three (3) years. Relevant
15 work experience and coursework may be considered and
16 applied to complete the plan.

17 2. An alternative certificate for superintendent of schools and
18 principals shall not exceed three (3) years and shall not be
19 renewable.

20 3. Upon successful completion of an alternative administrative
21 preparation program by a participant, the State Board of Education
22 shall issue a standard certificate for superintendent or principal,
23 as applicable, to the applicant.

1 4. Any person participating in an alternative certification
2 program for superintendent of schools and principals on ~~the~~
3 ~~effective date of this act~~ July 1, 2005, shall be subject to the
4 program requirements in effect prior to ~~the effective date of this~~
5 ~~act~~ July 1, 2005.

6 E. The certification requirements for a superintendent of a
7 technology center school district shall include not less than a
8 standard master's degree, any other professional education
9 requirements as may be fixed by the State Board of Education, and a
10 minimum of four (4) years teaching, supervisory, or administrative
11 experience, which may include teaching of full-time adult students,
12 in a technology center school district. A person meeting the
13 requirements set forth in subsection C of this section shall be
14 eligible for a certificate for superintendent of a technology center
15 school district.

16 F. The State Board of Career and Technology Education shall
17 promulgate rules for a certification system specifically for
18 teachers and instructors in the technology center school districts.
19 The system shall be competency-based. The competencies for
20 certification shall include industry-based skills, standards, and
21 certifications.

22 G. Certificates issued by the State Board of Education may be
23 revoked by the State Board of Education for willful violation of any
24 rule of the Board or of any federal or state law or other proper

1 cause but only after sufficient hearing has been given before the
2 Board.

3 H. Teaching in a Head Start program or programs shall be used
4 for renewal of a standard teaching certificate.

5 SECTION 2. AMENDATORY 70 O.S. 2021, Section 13-101, is
6 amended to read as follows:

7 Section 13-101. A. The State Department of Education and the
8 public school districts in this state shall comply with provisions
9 of the Individuals with Disabilities Education Act (IDEA), P.L. No.
10 108-446, and the Department shall be authorized to expend federal
11 funds to provide special education and related services necessary
12 for children with disabilities. "Children with disabilities" shall
13 mean children, as defined by IDEA, who are three (3) years of age
14 through twenty-one (21) years of age.

15 B. 1. The ~~several~~ school districts of ~~Oklahoma~~ in this state
16 are hereby authorized to provide special education and related
17 services necessary for children with disabilities ~~as hereinafter~~
18 ~~defined~~. Two or more school districts may establish cooperative
19 programs of special education for children with disabilities when
20 such arrangement is approved by the State Board of Education. Funds
21 may be expended for school services for an additional period during
22 the summer months for approved programs for qualified children with
23 disabilities, provided their individualized education program
24 ~~(I.E.P.)~~ (IEP) states the need for extended school year special

1 education and related services. ~~Children with disabilities shall~~
2 ~~mean children, as defined in the Individuals with Disabilities~~
3 ~~Education Act (IDEA), P.L. No. 105-17, who are three (3) years of~~
4 ~~age.~~

5 ~~Provided, on 2.~~ On and after July 1, 1991, children from age
6 birth ~~through two (2) years (0-36 months) of~~ until they reach the
7 age of three (3) who meet the eligibility criteria specified in
8 Section 13-123 of this title, shall be served pursuant to the
9 provisions of the Oklahoma Early Intervention Act. The attendance
10 of ~~said~~ such children in special education classes shall be included
11 in the average daily membership computations for State Aid purposes.

12 C. The State Board of Education is authorized to modify and
13 redefine by regulation the eligibility definitions whenever such
14 modification is required to receive federal assistance under the
15 ~~Individuals with Disabilities Education Act (IDEA), P.L. No. 105-17~~
16 provisions of IDEA. Rules developed pursuant to Section 18-109.5 of
17 this title shall provide for such modification and revised
18 definitions.

19 D. It shall be the duty of each school district to provide
20 special education and related services for all children with
21 disabilities as herein defined who reside in that school district in
22 accordance with ~~the Individuals with Disabilities Education Act~~
23 ~~(IDEA), P.L. No. 105-17~~ IDEA. This duty may be satisfied by:

1 1. The district directly providing special education for such
2 children;

3 2. The district joining in a cooperative program with another
4 district or districts to provide special education for such
5 children;

6 3. The district joining in a written agreement with a private
7 or public institution, licensed residential child care and treatment
8 facility, or day treatment facility within such district to provide
9 special education for children who are deaf or hard-of-hearing,
10 children who are blind or partially blind, or other eligible
11 children with disabilities; or

12 4. Transferring eligible children and youth with disabilities
13 to other school districts which accept them and provide special
14 education and related services for such children, with the district
15 in which the child resides paying tuition ~~therefor as hereinafter~~
16 ~~provided~~. For those students who transfer pursuant to the
17 provisions of the Education Open Transfer Act, the receiving school
18 district shall assume all responsibility for education and shall
19 count the student for federal and state funding purposes according
20 to the provisions of subsection B of Section 13-103 of this title.

21 E. The parent or legal guardian of a child with disabilities
22 shall have the right to:

23 1. Review all documents including, but not limited to,
24 evaluations, reports, progress monitoring data, work samples,

1 behavior logs, and discipline records, at least five (5) business
2 days prior to any meeting regarding an IEP, a meeting conducted
3 pursuant to Section 504 of the Rehabilitation Act of 1973, or any
4 other meeting regarding accommodations for a child with a
5 disability. The parent or legal guardian may agree in writing to a
6 review period of fewer than five (5) business days; and

7 2. Bring any individual of the parent or legal guardian's
8 choosing including an individual with unique knowledge or expertise
9 regarding the child to any meeting with school personnel including,
10 but not limited to, meetings regarding an IEP, meetings conducted
11 pursuant to Section 504 of the Rehabilitation Act of 1973, and
12 meetings concerning the academics, behavior, discipline, attendance,
13 health, or any other matter involving the child with a disability.

14 F. The Department shall publish on its website information
15 about the dispute resolution options available to parents and legal
16 guardians of children with disabilities, which shall include:

- 17 1. IEP facilitation;
- 18 2. Mediation;
- 19 3. Due process; and
- 20 4. State complaint procedure.

21 G. The State Board of Education may promulgate rules and update
22 relevant special education policies and procedures to comply with
23 the provisions of this section.

24 SECTION 3. This act shall become effective July 1, 2026.

1 SECTION 4. It being immediately necessary for the preservation
2 of the public peace, health, or safety, an emergency is hereby
3 declared to exist, by reason whereof this act shall take effect and
4 be in full force from and after its passage and approval.

5
6 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION OVERSIGHT, dated
7 04/13/2026 - DO PASS.

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